CONTRACT AGREEMENT

24 05274

THIS AGREEMENT made the 20 day of MAY 2024 20____ between **PARTIDO STATE UNIVERSITY** with office address at San Juan Bautista St., Goa, Camarines Sur, Philippines (hereinafter called "the Entity") of the one part and **CONVERGE INFORMATION AND COMMUNICATIONS TECHNOLOGY SOLUTIONS INC.** with office address at 99 E. Rodriguez Jr. Avenue, Ugong, Pasig City, Philippines (hereinafter called "the Supplier") of the other part;

LEO CONSTANTINE S. BELLO
End-User Representative

WHEREAS, the Entity invited Bids for certain goods and ancillary services, particularly **UPGRADE OF SECONDARY DEDICATED DIRECT INTERNET CONNECTION FOR GOA CAMPUS** and has accepted a Bid by the Supplier for the supply of those goods and services in the sum of **One Million Seven Hundred Twenty-Seven Thousand Forty Pesos (PhP 1,727,040.00)** (hereinafter called "the Contract Price").

The whole work comprised in the contract shall be completed, installed and/or delivered within Thirty (30) calendar days in accordance with the provisions of the bid documents.

NOW THIS AGREEMENT WITNESSETH AS FOLLOWS:

1. In this Agreement words and expressions shall have the same meanings as are respectively assigned to them in the Conditions of Contract referred to.

CHARLIE V. BALAGTAS
V.P.-Admin. & Finance

2. The following documents as required by the 2016 revised Implementing Rules and Regulations of Republic Act No. 9184 shall be deemed to form and be read and construed as integral part of this Agreement, *viz.*:

   i. Philippine Bidding Documents (PBDs);
      i. Schedule of Requirements;
      ii. Technical Specifications;
      iii. General and Special Conditions of Contract(Section IV and V of the bidding Documents); and
      iv. Supplemental or Bid Bulletins, if any

   ii. Winning bidder's bid, including the Eligibility requirements, Technical and Financial Proposals, and all other documents or statements submitted;

   Bid form, including all the documents/statements contained in the Bidder's bidding envelopes, as annexes, and all other documents submitted (*e.g.*, Bidder's response to request for clarifications on the bid), including corrections to the bid, if any, resulting from the Procuring Entity's bid evaluation;

   iii. Performance Security;

   iv. Notice of Award of Contract; and the Bidder's conforme thereto; and

   v. Other contract documents that may be required by existing laws and/or the Procuring Entity concerned in the PBDs. **Winning bidder agrees that additional contract documents or information prescribed by the GPPB that are subsequently required for submission after the contract execution, such as the Notice to Proceed, Variation Orders, and Warranty Security, shall likewise form part of the Contract.**

HAJ OLIVER R. TORALLO
Key Account Manger

3. Detailed Breakdown of Contract Cost

Item #	ITEM DESCRIPTION	Qty	Unit	UNIT PRICE	TOTAL PRICE
1	Secondary Internet service for one (1) year 2024	1	lot	1,727,040.00	1,727,040.00
	a. The ISP shall provide an internet connection				
	service to be installed at the Partido State				
	University, Goa Campus at which shall comply				
	with the following minimum requirements:				
	i. Dedicated direct Internet connection				
	via leased line (no shared connection)				
	ii. To be provided by duly established ISP				
	which operate a pure fiber network end-to-end;				
	(to attach certificate and/or proof that the company is operating via end-to-end fiber NTC certification is preferred over VAS)				
	iii. With Committed Information Rate (CIR)				
	bandwidth of 300 Mbps full bandwidth				
	for both upstream and downstream				
	network traffic				
	iv. With less than 1% packet loss				
	(average over 1000ping) at any given				
	point in time.				
	v. Must provide at least 99.5 network				
	reliability / uptime / availability				
	b. The Service Provider shall be National				
	Telecommunication Commission (NTC) registered/				
	accredited company				
	c. Service Provider must provide an internet				

ARNEL B. ZARCEDO, EDEL
SUC President III

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	bandwidth monitor/utilization via web browser				
	(e.g. MRTG, Cricket, RRD Tool, Net Flow, etc)				
	d. The Secondary Internet Access Service Provider				
	MUST BE A DIFFERENT ISP/Telecommunications				
	Company from the Primary Internet Access				
	Services Provider				
	e. Must provide Thirty-Two (32) Useable Public IP				
	Addresses or /27 IP Block				
	f. Must provide an Fiber interface or hands-off Fiber				
	interface circuit that will connect to ParSU Network.				
	g. IP routing must be redundant and with diversity.				
	h. Must provide a multiple gateway router to				
	internet for redundancy and reliability				
	i. The bidder must be IPV6-ready				
	and/or compliant.				
	j. The bid price must be VAT Inc. and up to				
	3 months arrears without disconnection				
	Others:				
	1. Provide 24 x 7 technical assistance and				
	customer service accessible via telephone				
	and email.				
	2. The service provider must submit detailed				
	escalation and restoration procedure for				
	network or service outages including the				
	contact details				
				Grand Total:	**1,727,040.00**

4. In consideration for the sum of **One Million Seven Hundred Twenty-Seven Thousand Forty Pesos (PhP 1,727,040.00)** or such other sums as may be ascertained, **CONVERGE INFORMATION AND COMMUNICATIONS TECHNOLOGY SOLUTIONS INC.** agrees to supply & deliver in accordance with his/her/its Bid.

5. The **PARTIDO STATE UNIVERSITY** agrees to pay the above-mentioned sum in accordance with the terms of the Bidding.

IN WITNESS whereof the parties hereto have caused this Agreement to be executed in accordance with the laws of the Republic of the Philippines on the day and year first above written.

CONVERGE ICT SOLUTIONS INC.

By:

HAJJ OLIVER R. TORALLO
Key Account manager

PARTIDO STATE UNIVERSITY

By:

ARNEL B. ZARCEDO, EDEL
SUC President III

SIGNED IN THE PRESENCE OF:

CHARLIE V. BALAGTAS
V.P.-Admin. & Finance

LEO CONSTANTINE S. BELLO
End-User Representative

ACKNOWLEDGMENT

REPUBLIC OF THE PHILIPPINES)
Pasig City) S.S.

BEFORE ME, a Notary Public for and in the above jurisdiction personally appeared the following:

NAME	VALID ID.	DATE/PLACED ISSUED
ARNEL B. ZARCEDO, EDEL	Passport P2633758B	July 24, 2019, Legazpi City
HAJJ OLIVER R. TORALLO	DRIVERS LICENSE N01-06-001438	SEPTEMBER 12, 2022, PIO. CAM. SUR

to me to the same persons who executed the foregoing instruments and acknowledged to me that the same is their own free will and voluntary act and deed.

WITNESS MY HAND AND SEAL, this MAY 20 2024 day of _____, 20__ at Pasig City, Philippines.

ATTY. ANGELITO R. VILLARIN
Notary Public for Pasig City
until December 31, 2025
Unit 405 Jade Center Building
105 Shaw Boulevard, Pasig City
PTR No. 21046195 - January 02, 2024, Rizal
IBP OR No. 384861 - January 02, 2024, Pasig City
Roll No. 39624
MCLE Compliance # VII-0017644; 05/11/22
TIN No. 119-197-689-000

NOTARY PUBLIC

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